

		<u>MICRA</u> Civil Code section 3333.2 provides a cap on noneconomic damages in professional negligence cases. It does not apply to intentional torts. If appropriate, damages may be reduced by the court post-trial to comply with MICRA. It is not grounds for a demurrer. CASE MANAGEMENT CONFERENCE CONTINUED TO September 21, 2026, 1:30 p.m. Defendants to give notice.
109	National Funding v. 911 Restoration Services of Minneapolis, 2026-01543776	MOTION TO SET ASIDE/VACATE DEFAULT AND JUDGMENT – GRANTED Plaintiff National Funding, Inc.’s motion to vacate default and default judgment entered against Defendant 911 Restoration Services of Minneapolis LLC is GRANTED. Plaintiff has submitted evidence, in the form of the declaration of its counsel, that Defendant 911 Restoration Services of Minneapolis LLC filed a bankruptcy petition on March 9, 2026. (Hawley Decl. ¶ 3.) Default in this case was entered on March 23, 2026 and a default judgment was entered on April 3, 2026. 11 U.S.C. §362 imposes an automatic stay upon the filing of a bankruptcy petition, which enjoins creditors of the bankruptcy petitioner from pursuing actions against the bankruptcy petitioner. Acts in violation of the automatic stay are void. (Hillis Motors, Inc. v. Hawaii Automobile Dealers' Ass'n (9th Cir. 1993) 997 F.2d 581, 586 [actions taken by state agency to dissolve debtor corporation while stay was in effect were void]; In re Schwartz (9th Cir. 1992) 954 F.2d 569, 571; see also In re Valentine (Bankr. E.D.Cal. 2022) 648 B.R. 324, 333 [“all acts that violate the automatic stay are void without regard to any knowledge or notice of a bankruptcy case or the automatic stay”].) “The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or

		orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc., § 473(d).) The Court therefore sets aside the entry of default and default judgment against Defendant 911 Restoration Services of Minneapolis LLC as void. The Court will enter an Amended Judgment removing Defendant 911 Restoration Services of Minneapolis LLC, such that the judgment will be solely against Defendant Jenna Reese. Counsel for Plaintiff shall prepare the amended judgment. The Court dismisses Defendant 911 Restoration Services of Minneapolis LLC without prejudice, as requested by Plaintiff.
110	R. v. California Physicians’ Service, 2024-01419731	MOTION FOR SUMMARY JUDGMENT – DENIED MOTION FOR SUMMARY ADJUDICATION – GRANTED IN PART AS TO THIRD CAUSE OF ACTION, DENIED ON ALL REMAINING ISSUES MOTIONS TO SEAL – GRANTED <u>Motions to Seal</u> The motion to seal portions of the opposing papers and reply papers, which is set for hearing on October 12, 2026, is ADVANCED to today’s date on the court’s own motion. Both motions to seal are GRANTED. The material covered by the motions is Protected Health Information of Plaintiff. The court’s tentative ruling is necessarily cryptic to protect Plaintiff’s protected health information. <u>Continuance</u> Plaintiff’s request for a continuance of the hearing on the motion pursuant to Code of Civil Procedure § 437c(h) is DENIED. Plaintiffs concede that “Blue Shield has produced the policies and review records that applied to V.R.’s 2024 requests.” (Opp., 19:20-21.) Plaintiffs assert that Blue Shield continues to withhold the policies, procedures, manuals, guidelines, and training materials governing the handling and review of requests like V.R.’s that were in effect after the 2024 requests and appeals, and the complete screenshots of screens and interfaces used to process V.R.’s requests, “having